

25CV03990 Global Assets Liens & Foreclosures LLC vs East Bay Therapeutics

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-20

Motion: 1. CMC; 2. Motion: To Be Relieved As Counsel; 3. Right to Attach

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Tentative Ruling: Global Assets Liens & Foreclosures LLC vs East Bay Therapeutics

Case Number

25CV03990

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/20/2026 - 10:00

Nature of Proceedings

1. CMC; 2. Motion: To Be Relieved As Counsel; 3. Right to Attach

Tentative Ruling

Global Assets Liens & Foreclosures, LLC v. East Bay Therapeutics dba Ohana Cannabis

Case No. 25CV03990

Hearing Date: July 20, 2026

HEARING: (1) Application by Plaintiff for Right to Attach Order and for Issuance of Writ of Attachment after Hearing

(2) Motion by Defendant's Counsel to be Relieved as Counsel of Record

ATTORNEYS: For Plaintiff Global Assets Liens & Foreclosures, LLC: Mariam G. Ortiz

For Defendant East Bay Therapeutics dba Ohana Cannabis: Sara Gunderson

TENTATIVE RULING:

(1) The application of plaintiff Global Assets Liens & Foreclosures, LLC, for right to attach order and for issuance of writ of attachment after hearing is continued to September 21, 2026. On or before August 3, 2026, plaintiff shall file a proof of service for all moving papers pertaining to its application and amended application, as well as this order, indicating service of these documents on defendant's new counsel of record, Sara Gunderson. Defendant may file an opposition on or before September 2, 2026, and plaintiff may file a reply on or before September 10, 2026.

(2) The motion to be relieved as defendant's counsel of record by attorney Michael L. Martucci is ordered off calendar as moot in light of the June 1, 2026, substitution of counsel by consent.

Background:

On June 26, 2025, plaintiff Global Assets Liens & Foreclosures, LLC, initiated this action against defendant East Bay Therapeutics dba Ohana Cannabis, by filing a complaint setting forth four causes of action for (1) breach of written contract, (2) account stated, (3) open account, and (4) goods sold and delivered.

As alleged in the complaint:

Third party Distro Accounts Receivable, LLC (Distro), assigned to plaintiff certain accounts receivable (Accounts) payable by defendant to third party Herbl, Inc. (Herbl). (Compl., ¶¶ 8, 9 & Exs. A-B.) Distro previously purchased these Accounts out of receivership in the action entitled, East West Bank v. Herbl, Inc., Santa Barbara case No. 23CV02629. (Compl., ¶ 9 & Ex. A.)

Plaintiff's predecessors (i.e., Herbl) engaged in a series of business transactions related to the supply of wholesale cannabis products for retail sale by defendant to the public. (Compl., ¶ 12 & Ex. B.) In exchange, defendant agreed to remit payment within a specified date as indicated on invoices (Invoices). (Ibid.) The products reflected in the Invoices were delivered but defendant did not remit payment as agreed. (Ibid.) Pursuant to these Accounts and Invoices, defendant owes plaintiff \$23,123.48, representing unpaid Invoices for the sale and delivery of various cannabis products that became due within the 18-month period prior to the filing of the complaint. (Ibid.)

On August 14, 2025, defendant filed an answer generally denying the allegations in the complaint and setting forth twenty-five affirmative defenses.

On April 2, 2026, defendant's counsel, Michael L. Martucci, filed a motion to be relieved as counsel in this action. The supporting declaration states: "The attorney client relationship has become untenable and direct conflict has arisen between counsel and client implicating the 13th Amendment to the Constitution. Counsel cannot disclose the specific circumstances due to the attorney-client privilege." (Martucci Decl.)

On April 30, 2026, plaintiff filed an application (Application) for right to attach order and for issuance of writ of attachment after hearing. The Application seeks an order directing defendant to transfer to the levying officer possession of property in defendant's possession, documentary evidence in defendant's possession of title to property, and documentary evidence in defendant's possession of amounts owed to defendant. Attachment is sought by plaintiff to secure recovery on a claim

pursuant to Code of Civil Procedure section 483.010. The amount to be secured by the attachment is \$35,323.40, which includes estimated allowable attorney fees in the amount of \$5,700.

Plaintiff's Application is supported by a memorandum of points and authorities, a notice of Application and hearing, a declaration of Miriam Ortiz, plaintiff's counsel, a declaration of Christopher Traina, a person affiliated with plaintiff's operations, and a declaration from Sidney Dunmore, a person affiliated with Distro's operations.

On May 29, 2026, plaintiff filed an Amended Application and supplemental declarations of Dunmore and Traina. The amount to be secured by the attachment in the Amended Application is \$35,893.56, which includes estimated allowable attorney fees in the amount of \$5,700. There is no opposition on file as to the original Application or Amended Application.

On June 1, 2026, defendant filed a substitution of attorney indicating that Sara Gunderson is substituted as counsel for defendant in this action. This filing, signed by attorneys Gunderson and Martucci, indicates that Nasser Azimi, principal of Teranomic Software, Inc., consented to this substitution of counsel.

On July 15, 2026, the clerk of the court rejected defendant's notice of opposition to plaintiff's right to attach application because defendant did not comply with local rule 1012 pertaining to mandatory e-filing. The court notes that this opposition would have been untimely even if filed properly. (See Code Civ. Proc., § 1005, subd. (b).) The court also notes there are issues with the proof of service on defendant as discussed herein.

Analysis:

(1) Plaintiff's Application for Right to Attach Order and Writ of Attachment

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service." (Cal. Rule of Court, rule 3.1300(a).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Id., rule 3.1300(c).) Here, some of plaintiff's moving papers are supported by a proof of service but the following documents are not supported by a proof of service: Application, notice of Application and hearing, Amended Application. Given this apparent service issue and that defendant has new counsel and has unsuccessfully attempted to file a late notice of opposition, among other factors, the court in its discretion will continue this application and require that all moving papers and this order be served by plaintiff on defendant's new counsel of record.

(2) Motion to be Relieved as Counsel by Michael L. Martucci

On June 1, 2026, defendant filed a substitution of attorney by consent. A court order is not required, "[u]pon the consent of both client and attorney, filed with the clerk, or entered upon the minutes." (Code Civ. Proc., § 284, subd. (1).) The court will order this motion off calendar as moot.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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